

Seema Mishra v. State of U.P. & 5 Others

Allahabad High Court · Division Bench · 11 October 2022 · Writ - C No. 22925 of 2022 · **Writ petition dismissed on alternative remedy; petitioner left to challenge the 22.7.2022 order under Clause 7.10; if filed within a month with a certified copy, to be entertained without a limitation objection; pending applications disposed of; no opinion on merits**

HEADNOTE

Where a consumer seeks mandamus against disconnection and alleged forged electricity bills, and by amendment to quash an order dated 22.7.2022 deciding her representation, and that order is assailable under Clause 7.10 of the U.P. Electricity Supply Code, 2005, the writ court will not decide the merits. The petitioner's earlier Writ-C No. 24917 of 2014 had been disposed of on 13.12.2021 with a direction to decide the representation; Writ-C No. 18143 of 2021 seeking meter installation, correct reading and non-disconnection had been dismissed on 4.8.2021; and contempt for alleged disobedience of the 13.12.2021 order had been dismissed on 29.8.2022 once the representation was decided on 22.7.2022. Counsel for the electricity respondents objected that the 22.7.2022 order is assailable under Clause 7.10. Without expressing any opinion on the merits, the writ is dismissed on the ground of alternative remedy, leaving the petitioner to avail Clause 7.10 against the 22.7.2022 order. If an application is filed within a month along with a certified copy of this order, the competent authority shall entertain it without objection as to limitation. All pending applications stand disposed of.

FACTUAL SUMMARY

Seema Mishra petitioned the Allahabad High Court in Writ-C No. 22925 of 2022 against the State of U.P. and five others. She sought mandamus directing respondents 4 and 5 not to disconnect her electricity and not to forge bills which, she said, had been produced in Writ-C No. 18143 of 2021 and had been quashed. By an amendment application dated 15 September 2022 she also sought to quash respondent no. 4's order dated 22 July 2022.

A co-ordinate Bench had on 13 December 2021 disposed of her earlier Writ-C No. 24917 of 2014 by directing that her representation be decided. During that petition she filed Writ-C No. 18143 of 2021 for a meter, meter card, correct reading and non-disconnection; that writ was dismissed on 4 August 2021. Contempt Application (Civil) No. 4226 of 2022 alleging disobedience of the 13 December 2021 order was dismissed on 29 August 2022 because the representation had been decided on 22 July 2022. Counsel for respondents 4, 5 and 6 objected that the 22 July 2022 order was assailable under Clause 7.10 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

writ against an order deciding a representation is barred by the Clause 7.10 Forum/Ombudsman remedy

QUESTION

Where the consumer's representation has been decided by an order dated 22.7.2022 that is assailable under Clause 7.10 of the Supply Code, will the writ court restrain disconnection, examine alleged forged bills, or quash that order on merits?

HOLDING

No. The representation directed to be decided in Writ-C No. 24917 of 2014 was decided on 22.7.2022. That order is assailable under Clause 7.10 of the U.P. Electricity Supply Code, 2005. Counsel for respondents 4, 5 and 6 raised a preliminary objection to maintainability on that ground. Without expressing any opinion on the merits, the writ is dismissed on the ground of alternative remedy, leaving the petitioner to avail Clause 7.10 to challenge the 22.7.2022 order. If such an application is filed within a month along with a certified copy of this order, the competent authority shall entertain it without raising any objection as to limitation. All pending applications, including the amendment seeking to quash the 22.7.2022 order, stand disposed of. ¶ 7-9

QUALIFIER

The Court did not identify which sub-clause of 7.10 (Forum complaint or Ombudsman appeal) applies to a challenge to a representation-decision. It recorded that Writ-C No. 18143 of 2021 was dismissed on 4.8.2021, contrary to the petitioner's recital that that writ had quashed the bills.

FLAG Five-page PDF concatenates three unnumbered sittings. Operative disposal is 11.10.2022 (Surya Prakash Kesarwani and Rajendra Kumar-IV, JJ.). Paras are sequential blocks of that order only (1 heard; 2 quoted prayers; 3 amendment to quash 22.7.2022; 4 prior Writ-C 24917 of 2014 and dismissal of Writ-C 18143 of 2021; 5 contempt dismissed because the representation was decided; 6 present writ; 7 Clause 7.10 / maintainability objection; 8 dismissed, one-month window, no limitation objection; 9 pending applications disposed of). Earlier sittings: 22.8.2022 (Manoj Kumar Gupta and Ram Manohar Narayan Mishra, JJ.) listing before the electricity Bench; 15.9.2022 (Manoj Misra and Vikas Budhwar, JJ.) recusal of Manoj Misra, J. Keyed as spoken (UP-2005::7.10). Catalog also carries CGRF-2007::7.10; not silently re-keyed.

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The writ seeking non-disconnection, a bar on alleged forged bills, and (by amendment) quashing of the 22.7.2022 representation-decision was dismissed because that order is assailable under Clause 7.10; the Court expressed no opinion on the merits. ¶ 7-8

consumer-grievance-redressal-forum-remedy-clause-7.10 The petitioner was left to challenge the 22.7.2022 order under Clause 7.10 of the U.P. Electricity Supply Code, 2005; if she applies within a month with a certified copy of the writ order, the competent authority is to entertain it without a limitation objection. ¶ 7-8

apply-under-supply-code-consider-in-accordance-with-law A Clause 7.10 application filed within a month of 11.10.2022, with a certified copy of the order, is to be entertained without objection as to limitation; the writ court did not grant or refuse the underlying disconnection/billing relief. ¶ 8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE 22.7.2022 ORDER DECIDING THE PETITIONER'S REPRESENTATION, WHETHER DISCONNECTION SHOULD BE RESTRAINED, AND WHETHER THE BILLS WERE FORGED
Expressly no opinion on the merits; left to a Clause 7.10 challenge to the 22.7.2022 order. ¶ 8

NOT DECIDED — WHICH SUB-CLAUSE OF CLAUSE 7.10 (FORUM COMPLAINT OR OMBUDSMAN APPEAL) APPLIES TO A CHALLENGE TO THE 22.7.2022 REPRESENTATION-DECISION
The Court cited Clause 7.10 of the Supply Code, 2005, without a sub-clause. ¶ 7-8